



ECONSULT AFRICA

ECONOMIC CONSULTING SERVICES LIMITED

FORECAST ARENA

TERMS OF USE

Economic Intelligence • Sentiment Aggregation • Research Participation

Effective Date: 25 March 2026

Last Updated: 27 March 2026

These Terms of Use (“Terms”) constitute a legally binding agreement between you (“User,” “you,” or “your”) and ECONSULT AFRICA ECONOMIC CONSULTING SERVICES LIMITED, a Kenya-incorporated economic intelligence, research, and advisory services company (“Econsult Africa,” “we,” “us,” or “our”), governing your access to and use of the Forecast Arena platform, including all associated websites, mobile interfaces, application programming interfaces (where made available), data feeds, and ancillary services (collectively, the “Platform”).

BY CREATING AN ACCOUNT, ACCESSING THE PLATFORM, SUBMITTING A FORECAST, OR OTHERWISE USING ANY FEATURE OF THE PLATFORM, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE, DO NOT ACCESS OR USE THE PLATFORM.

1. DEFINITIONS AND INTERPRETATION

1.1 “Aggregated Outputs” means consensus probability distributions, sentiment indicators, expectation indices, forecast distributions, and any other statistical, analytical, or research outputs derived from the aggregation and anonymization of User participation data across the Platform.

1.2 “Forecast Question” means a defined economic inquiry published on the Platform, specifying (a) the economic outcome under observation; (b) the forecast submission window; (c) the resolution date and time; (d) the designated Resolution Source(s); and (e) any applicable edge-case protocols (including for data revisions, publication delays, or methodological changes).

1.3 “Forecast Submission” means a User’s voluntary expression of an economic expectation, probability assessment, or directional view submitted in response to a Forecast Question, constituting an act of research participation.

1.4 “Participation Rules” means the specific rules, parameters, and specifications published for each Forecast Question, which form part of these Terms.

1.5 “Resolution Source” means the objective, externally verifiable public data source designated for determining the outcome of a Forecast Question (e.g., a national statistics agency, central bank, or international institution publication).

1.6 “Service Fee” means any operational, administrative, or infrastructure fee charged by Econsult Africa for access to Platform features, clearly disclosed at the point of use.

1.7 “User Content” means any commentary, rationale, analysis, or other content submitted by a User through the Platform.

1.8 Interpretation. Headings are for convenience only and do not affect interpretation. References to “including” mean “including without limitation.” Words in the singular include the plural and vice versa. References to statutes include all amendments, consolidations, and successor legislation.

2. PLATFORM IDENTITY, PURPOSE, AND REGULATORY POSITIONING

Nature of the Platform

2.1 Economic intelligence and sentiment aggregation instrument. Forecast Arena is an economic intelligence and research platform that crowdsources macroeconomic expectations and publishes Aggregated Outputs, including probability indicators, sentiment indices, and consensus distributions. The Platform functions as an economic expectations measurement instrument, enabling Users to contribute forecasts as a form of voluntary research participation. The Platform is designed to advance economic literacy, transparency, expectations analysis, and public-interest market intelligence.

2.2 Research rationale. The collection and aggregation of distributed economic expectations constitutes a legitimate and well-established research methodology. The Platform applies this methodology at scale to generate real-time economic sentiment data and probability-weighted consensus indicators that contribute to informed public discourse and economic analysis.

Negative Covenants: What the Platform Is Not

2.3 Categorical exclusions. To the maximum extent permitted by applicable law, you acknowledge and agree that the Platform is not offered, designed, structured, licensed, or intended to operate as, and shall not be construed, characterized, or used as:

(a) a gambling, betting, wagering, gaming, lottery, prize competition (except where separately and specifically licensed under a distinct regulatory framework), sportsbook, bookmaker, casino, or any other product or service the primary purpose of which is entertainment through games of chance or the staking of money or money’s worth on uncertain events or contingencies;

(b) a securities exchange, commodities exchange, derivatives exchange, futures exchange, trading venue, matching engine, order book, swap execution facility, designated contract market, multilateral

trading facility, organized trading facility, broker-dealer, or any facility providing or maintaining a securities or derivatives market;

(c) an investment product, collective investment scheme, fund, unit trust, managed portfolio, venture capital arrangement, investment-based crowdfunding platform, or any arrangement for pooling funds or capital for investment purposes;

(d) a deposit-taking business, bank, microfinance institution, savings and credit cooperative, savings product, or any business accepting deposits from the public;

(e) an electronic money (e-money) issuer, stored-value facility, digital wallet, prepaid instrument, or any arrangement under which monetary value is stored as a claim on the issuer, unless and only to the extent expressly stated in writing under a separate product, licensing posture, and user agreement; or

(f) a payment service provider conducting the business of sending, receiving, storing, or processing payments through electronic systems, except to the extent that Econsult Africa engages licensed third-party payment service providers for the processing of transaction-specific payments.

2.4 No “house” participation; no odds-setting. Econsult Africa does not take the opposite side of any User’s Forecast Submission, does not operate as a counterparty, does not set odds, does not act as a bookmaker, and does not price risk. Any consensus probabilities, sentiment indicators, or expectation distributions displayed on the Platform are generated exclusively by the aggregation of User activity and Platform analytics—not by Econsult Africa positioning itself against Users.

2.5 No advice. Nothing on the Platform constitutes, and nothing shall be construed as, financial, investment, legal, tax, accounting, or any other form of regulated professional advice. The Platform publishes economic research outputs and enables research participation. Any reliance on Platform outputs to inform personal, professional, or institutional decisions is undertaken entirely at your own risk.

3. ACCEPTANCE, ADDITIONAL POLICIES, AND AUTHORITY

3.1 Clickwrap acceptance. By creating an account, accessing the Platform, submitting a Forecast Submission, or engaging with any monetarily enabled feature, you confirm your unconditional acceptance of these Terms.

3.2 Incorporated policies. These Terms incorporate by reference, where applicable: (a) our Privacy Notice; (b) the Participation Rules for each Forecast Question; (c) any community guidelines or integrity policies posted on the Platform; and (d) any third-party payment service provider terms applicable to your chosen payment method.

3.3 Organizational authority. If you use the Platform on behalf of any organization, entity, or institution, you represent and warrant that you have full authority to bind that organization to these Terms, and references to “you” shall include that organization.

4. ELIGIBILITY AND ACCESS

4.1 Age. You must be at least eighteen (18) years of age to create an account or use the Platform. We may impose a higher age threshold in specific jurisdictions or for specific features where required by applicable law.

4.2 Jurisdictional eligibility. The Platform may be accessible from multiple jurisdictions; however, not all features are available in all locations. We reserve the right to restrict, geofence, limit, or prohibit access to the Platform (or specific features thereof) in any territory, jurisdiction, or User category where offering the Platform or a feature could create legal, regulatory, sanctions, anti-money laundering, counter-terrorism financing, tax, or operational exposures for Econsult Africa or its Users.

4.3 User responsibility for local compliance. You are solely responsible for determining and ensuring that your use of the Platform—including any participation in features involving monetary engagement—is lawful in your jurisdiction and under any professional, employer, public-sector ethics, or industry-specific

rules that apply to you. Econsult Africa does not provide legal advice regarding the applicability of any laws to your participation.

4.4 Right to refuse or restrict. We may decline to open an account or may restrict, limit, or withdraw access to features where we reasonably determine that such access would create risk to Platform integrity, data integrity, compliance posture, User safety, or the public-interest objectives of the Platform.

5. ACCOUNT REGISTRATION AND SECURITY

5.1 Accurate information. You agree to provide accurate, complete, and current registration information and to promptly update such information as necessary.

5.2 Single account policy. Unless expressly approved by Econsult Africa in writing, you may maintain only one account. Multi-accounting (including through nominee accounts, proxy accounts, or shared credentials) is strictly prohibited and constitutes an integrity breach.

5.3 Account security. You are responsible for maintaining the confidentiality of your login credentials and for all activity conducted through your account, whether or not authorized by you. You must notify us promptly upon becoming aware of any suspected unauthorized access or security compromise.

5.4 Professional conduct. If you are a regulated professional (including in finance, public service, government, academia, or a research institution), you represent and warrant that your participation on the Platform complies with all applicable professional codes of conduct, ethics policies, and institutional rules.

6. FORECAST QUESTIONS AND RESEARCH PARTICIPATION MECHANICS

Forecast Questions

6.1 Structure. The Platform publishes Forecast Questions relating to defined economic outcomes. Each Forecast Question is accompanied by Participation Rules specifying the outcome definition, forecast window, resolution date and time, designated Resolution Source(s), and edge-case protocols.

6.2 Objective resolution. Outcomes are determined exclusively by reference to objective, externally verifiable data published by the designated Resolution Source(s)—such as national statistics agencies, central banks, or international institutions. Econsult Africa does not determine, influence, or adjudicate economic outcomes.

Non-Monetary Research Participation

6.3 Default mode. The Platform's default participation mode is non-monetary research forecasting, whereby Users submit Forecast Submissions and receive accuracy-based reputation scores, analytics, and research access. Non-monetary participation may still be subject to verification and integrity requirements.

Signal-Enhancement Participation (Monetary Engagement)

6.4 Purpose and characterization. Where enabled for a specific Forecast Question and jurisdiction, the Platform may permit Users to commit a defined, fixed-value participation amount ("Participation Amount") as a mechanism to enhance the informational quality and seriousness of Forecast Submissions. This signal-enhancement mechanism is designed to encourage honest signal revelation, considered analysis, and substantive engagement with macroeconomic data—it is not offered as a game of chance, wagering entertainment, speculative trading opportunity, investment vehicle, or any other product the primary purpose of which is risk-taking for financial reward.

6.5 No leverage; no borrowing; no credit. Forecast Submissions are made only with the Participation Amount committed for that specific Forecast Question. The Platform does not offer, permit, or facilitate borrowing, leverage, margin, credit extension, or any form of financing in connection with participation.

6.6 Non-transferability; personal participation. Forecast Submissions and any associated Participation Amounts are personal to the User account. They are non-transferable, non-assignable, non-negotiable,

and may not be resold, dealt in, or otherwise disposed of on-platform or off-platform. There is no secondary market, order book, matching engine, or trading facility.

6.7 Participation caps and controls. We may apply participation caps per Forecast Question, per time period, per User, per User category, or per jurisdiction, and may adjust such caps dynamically to protect Users, preserve Platform integrity, and ensure compliance.

7. FEES, CHARGES, AND CHARACTERIZATION

7.1 Service Fees. We may charge Service Fees for access to certain Platform features, clearly disclosed at the point of use. Service Fees cover platform administration, infrastructure, compliance controls, product operations, data processing, and payment handling.

7.2 Characterization of fees. Service Fees are operational charges for access to an economic intelligence and research service. They are not, and shall not be construed as, a bookmaker margin, house edge, trading spread, commission on investment, management fee, or any form of risk-based pricing.

7.3 Tax responsibility. You are responsible for any taxes, duties, or levies that may apply to your use of the Platform, except where we are required by law to withhold or report. We may request tax-related information and documentation where reasonably necessary.

8. PAYMENTS AND FUNDS-FLOW ARCHITECTURE

8.1 Transaction-specific payments; no stored value. If monetary engagement is enabled, Participation Amounts are paid for a specific Forecast Submission. They are not deposits, savings, stored value, e-money, a general-purpose account balance, or a claim against Econsult Africa. The Platform does not provide a wallet, stored-value facility, or any arrangement under which monetary value is held as a claim on its issuer.

8.2 Third-party payment providers; no custody. Payment processing is facilitated by licensed third-party payment service providers. Unless expressly stated otherwise under a separately documented, licensed custody or payment service, Econsult Africa does not hold, store, or process User funds as a payment service provider, custodian, or trustee. Users may be subject to the terms and conditions of applicable third-party payment service providers.

8.3 Reconciliation and compliance holds. We may hold, delay, reconcile, net, reverse, or refuse transfers where reasonably required for verification, compliance review, fraud detection, technical error resolution, legal obligations, dispute handling, or protection of data integrity and Platform integrity.

8.4 Chargebacks and reversals. If your payment is reversed, charged back, or otherwise invalidated by a payment provider, we may (a) cancel affected Forecast Submissions; (b) reduce or cancel any pending accuracy-based recognitions; and (c) suspend your account pending review and resolution.

8.5 No interest or time-based value. We do not pay interest or any time-based value on Participation Amounts or any amounts pending distribution.

9. ACCURACY-BASED RECOGNITION AND USER RISK ACKNOWLEDGEMENTS

Accuracy-Based Recognition

9.1 Recognition mechanism. Where enabled, the Platform may provide accuracy-based recognition to Users whose Forecast Submissions demonstrate superior forecasting accuracy, as determined by the Participation Rules, scoring methodology, and distribution protocols disclosed for the applicable Forecast Question ("Accuracy-Based Recognition"). Such recognition may take the form of non-monetary reputation benefits, enhanced Platform access, analytical privileges, research invitations, or, where specifically enabled and lawful, monetary recognition.

9.2 Characterization. Any Accuracy-Based Recognition is a participation incentive linked to demonstrated forecasting skill and accuracy in the context of economic research participation. It is not an investment return, yield, profit, dividend, trading gain, prize, or winning within the meaning of any gambling, gaming, or financial-services legislation.

9.3 No guarantee. Econsult Africa does not guarantee that any User will receive Accuracy-Based Recognition. Participation in the Platform involves the possibility that you may receive no recognition and, where monetary engagement is enabled, that you may lose some or all of the Participation Amount committed to a Forecast Submission.

Risk Acknowledgements

9.4 Skill-based nature. You acknowledge that economic forecasting is an intellectually demanding activity requiring analytical skill, rigorous engagement with macroeconomic data, informed judgment, and continuous learning. Notwithstanding the application of skill, economic outcomes are inherently uncertain and may be affected by policy changes, exogenous shocks, measurement limitations, data revisions, and factors beyond any participant's control or foresight.

9.5 No reliance on Platform outputs. You agree not to treat the Platform, its Aggregated Outputs, or any information displayed thereon as a source of financial, investment, legal, tax, or professional advice, or as a substitute for independent professional counsel. Any use of Platform outputs to inform decisions is at your sole risk.

9.6 Voluntary participation. Your participation on the Platform is entirely voluntary. You should not participate with amounts or resources you cannot afford to lose or that would cause you financial hardship.

10. RESOLUTION SOURCES, DATA INTEGRITY, AND FINALITY

10.1 Objective Resolution Sources. Each Forecast Question designates one or more objective Resolution Sources—such as official publications of national statistics agencies, central banks, international institutions, or other externally verifiable public data sources—used to determine outcomes.

10.2 First-publication rule. Unless the Participation Rules for a specific Forecast Question state otherwise, resolution will typically rely on the first publication by the designated Resolution Source that satisfies the Forecast Question criteria at or after the scheduled resolution time. Subsequent data revisions generally do not retroactively alter a resolved outcome.

10.3 Delays, force majeure, and alternative resolution. If a Resolution Source delays publication, changes methodology, becomes unavailable, or publishes materially inconsistent data, we may (acting reasonably, in good faith, and with due regard for data integrity) (a) defer resolution; (b) designate a comparable objective alternative source; (c) revise the resolution method for that Forecast Question in accordance with the Participation Rules; or (d) cancel the Forecast Question and unwind affected Forecast Submissions (including after deduction of non-refundable third-party payment costs, where applicable).

10.4 Finality. Subject to Section 10.5, Econsult Africa's determination of outcomes and Accuracy-Based Recognition is final and binding for Platform purposes. This finality principle is essential to maintain data integrity, operational certainty, and the prevention of interminable disputes.

10.5 Manifest error. We reserve the right to correct a resolution determination if we identify a clear and material error (a "manifest error"). In such cases, we may reverse or adjust Accuracy-Based Recognition and amend relevant records.

11. PLATFORM INTEGRITY, PROHIBITED CONDUCT, AND ENFORCEMENT

11.1 Core integrity principle. Forecast Arena is an economic research instrument and economic intelligence asset. The integrity of its data, analytics, and Aggregated Outputs depends on honest, independent, and analytically grounded participation. Manipulation of forecasts, Users, outcomes, consensus indicators, or resolution processes is treated as a serious integrity breach.

11.2 Prohibited conduct. Without limitation, the following conduct is prohibited:

- (a) using bots, automated scripts, or programmatic tools to create accounts, submit forecasts, or influence consensus indicators, except where we have expressly authorized such use through a documented API program;
- (b) multi-accounting, nominee participation, proxy participation, or account sharing;
- (c) collusion, coordinated manipulation, wash participation, or any attempt to mislead other Users or distort Aggregated Outputs;
- (d) fraud, identity misrepresentation, provision of false or misleading information, or use of stolen or unauthorized payment instruments;
- (e) attempting to influence, corrupt, tamper with, or obstruct Resolution Sources, including through bribery, coercion, or interference with official data publication processes;
- (f) exploiting software bugs, vulnerabilities, or security flaws, or attempting to reverse engineer, decompile, or circumvent access controls on restricted Platform elements;
- (g) harassment, hate speech, doxxing, threats, defamation, or submission of unlawful content;
- (h) using the Platform for, or in connection with, money laundering, terrorism financing, sanctions evasion, proliferation financing, or any other illicit financial activity;
- (i) any activity that would reasonably expose Econsult Africa to regulatory, reputational, legal, or operational risk.

11.3 Monitoring and investigation. We may monitor Platform activity for integrity and compliance purposes using automated systems, manual review, and analytical tools. We may request information from you in connection with any investigation.

11.4 Enforcement actions. We may impose enforcement measures including, without limitation, warnings, participation limits, feature restrictions, cancellation of Forecast Submissions, reversal or clawback of Accuracy-Based Recognition, temporary or permanent account suspension, and account termination.

12. IDENTITY VERIFICATION, AML/CTF, AND SANCTIONS COMPLIANCE

12.1 Verification. We may require identity verification at account creation and on an ongoing basis, including enhanced due diligence, depending on feature access, transaction volume, risk signals, and applicable legal obligations.

12.2 Source-of-funds inquiries. We may request information and documentation regarding source of funds and source of wealth. Failure to provide satisfactory information may result in feature restrictions, account limitations, or termination.

12.3 Sanctions and restricted persons. You represent and warrant that you are not (a) listed on any applicable sanctions or restricted-party list; (b) located in, organized under the laws of, or ordinarily resident in a comprehensively sanctioned jurisdiction; or (c) acting on behalf of or for the benefit of any sanctioned person or entity. We may screen Users against applicable sanctions lists, watchlists, and politically exposed persons databases.

12.4 Suspicious activity. We may monitor for, and escalate, suspicious activity. We may report to competent authorities where required by law. We may freeze, delay, restrict, or refuse any transaction or account activity while reviews or investigations are ongoing, without prior notice to you where such notice is prohibited by law.

12.5 Record retention and regulatory cooperation. We may retain records as required for compliance, audit, and legal purposes, and may cooperate with lawful requests from regulators, courts, law enforcement, and other competent authorities.

13. DATA RIGHTS, AGGREGATED OUTPUTS, AND USER CONTENT

Aggregated Outputs and Research Publication

13.1 Publication of Aggregated Outputs. You acknowledge that the Platform generates Aggregated Outputs from User participation data. Aggregated Outputs may be published (including publicly), distributed, sublicensed, and used in Econsult Africa's research, advisory, and commercial economic intelligence products and services.

13.2 Anonymization. Aggregated Outputs published externally will not identify individual Users. Research outputs are anonymized and aggregated by default, consistent with data protection principles and the research-compatible processing framework.

User Content

13.3 License grant. If the Platform permits you to submit User Content, you grant Econsult Africa a worldwide, non-exclusive, royalty-free, sublicensable, perpetual (for so long as reasonably necessary for Platform operations and research continuity) license to host, store, reproduce, publish, translate, adapt, distribute, and create derivative analytical works from your User Content for the purposes of Platform operation, moderation, research, publication of Aggregated Outputs, and development of economic intelligence products.

13.4 Attribution. We may attribute User Content to your chosen display name and may also anonymize or aggregate User Content for research integrity, privacy, and safety purposes.

13.5 Your representations. You represent and warrant that you own or have all necessary rights to submit User Content, that your User Content does not infringe any third-party intellectual property or other rights, and that it does not violate applicable law.

14. INTELLECTUAL PROPERTY

14.1 Econsult Africa's intellectual property. The Platform—including its software, algorithms, analytics methodologies, branding, trade names, logos, user interfaces, scoring systems, and underlying research frameworks—is owned by or licensed to Econsult Africa and is protected by applicable intellectual property laws.

14.2 Limited license. We grant you a limited, revocable, non-exclusive, non-transferable, non-sublicensable license to access and use the Platform for its intended research participation and economic intelligence purposes, subject to these Terms.

14.3 Restrictions. You may not copy, scrape (without express authorization), reverse engineer, decompile, disassemble, create derivative works from, or circumvent access controls on protected Platform elements, except as permitted by mandatory applicable law or express written permission from Econsult Africa.

15. PRIVACY AND DATA PROTECTION

15.1 Privacy Notice. Our Privacy Notice (available on the Platform) explains how we collect, process, store, share, and protect personal data, including for identity verification, fraud prevention, integrity monitoring, analytics, publication of Aggregated Outputs, and compliance with legal obligations.

15.2 Data protection by design. We implement data protection by design and by default, including data minimization, encryption, pseudonymization, and access controls appropriate to the nature and sensitivity of the data processed.

15.3 Cross-border processing. Depending on service providers, User location, and operational requirements, personal data may be processed across borders. Where required by applicable data protection law, we implement appropriate safeguards for cross-border transfers, including standard contractual clauses, adequacy determinations, or consent mechanisms, as described in our Privacy Notice.

15.4 Data Protection Impact Assessments. Where our processing is likely to result in high risk to User rights and freedoms, we conduct Data Protection Impact Assessments in accordance with applicable law and implement appropriate mitigations.

16. SUSPENSION, CANCELLATION, AND TERMINATION

16.1 Our rights. We may suspend, restrict, cancel, reverse, or terminate your account and any associated Forecast Submissions where we reasonably believe it is necessary for compliance, fraud prevention, sanctions screening, dispute handling, operational integrity, technical error correction, investigation of integrity breaches, or protection of Econsult Africa, Users, or the public interest in data integrity.

16.2 Effect of termination. Upon termination, your right to access and use the Platform ceases immediately. We may retain and continue to use Aggregated Outputs and anonymized data as described in these Terms, and may retain records as required for compliance, legal, and audit purposes.

16.3 No liability for good-faith enforcement. To the maximum extent permitted by applicable law, Econsult Africa shall not be liable for losses arising from good-faith enforcement actions taken under these Terms, including cancellations, reversals, clawbacks, and account restrictions.

17. DISCLAIMERS

17.1 Research nature; no advice. The Platform provides economic intelligence, research outputs, and Aggregated Outputs, and enables voluntary research participation. Nothing on the Platform is financial, investment, legal, tax, accounting, or any other form of regulated professional advice.

17.2 No guarantees of accuracy or availability. Forecast outcomes, consensus indicators, Aggregated Outputs, and analytics may be incomplete, delayed, revised, or incorrect. Resolution Sources may change methodology, delay publication, or become unavailable. The Platform is provided on an “as is” and “as available” basis, without warranties of any kind, whether express, implied, or statutory, including implied warranties of merchantability, fitness for a particular purpose, and non-infringement.

17.3 Third-party services. We are not responsible for errors, delays, outages, or changes in third-party data sources, payment processors, network services, or telecommunications infrastructure.

17.4 Modification and discontinuation. The Platform may be modified, updated, interrupted, or discontinued, temporarily or permanently, for operational, compliance, technical, or commercial reasons, with or without notice.

18. LIMITATION OF LIABILITY

18.1 Exclusion of indirect losses. To the maximum extent permitted by applicable law, Econsult Africa, its directors, officers, employees, contractors, affiliates, and suppliers shall not be liable for any indirect, consequential, special, incidental, punitive, or exemplary damages, including loss of profits, loss of revenue, loss of goodwill, loss of data, business interruption, or loss of opportunity, howsoever arising and whether in contract, tort (including negligence), strict liability, or otherwise.

18.2 Aggregate liability cap. To the maximum extent permitted by applicable law, Econsult Africa’s total aggregate liability arising out of or relating to the Platform and these Terms shall not exceed the greater of (a) the total Service Fees paid by you to Econsult Africa in the three (3) months immediately preceding the event giving rise to the claim, or (b) Kenya Shillings Five Thousand (KES 5,000), whichever is lower.

18.3 Essential bargain. You acknowledge that the disclaimers and limitations in Sections 17 and 18 represent a fundamental element of the basis of the bargain between you and Econsult Africa, and that Econsult Africa would not provide the Platform without these limitations.

18.4 Mandatory rights preserved. Nothing in these Terms excludes or limits any liability that cannot be lawfully excluded or limited under applicable mandatory law, including applicable consumer protection legislation.

19. INDEMNIFICATION

You agree to indemnify, defend, and hold harmless Econsult Africa and its directors, officers, employees, contractors, affiliates, agents, and suppliers from and against any and all claims, demands, damages,

liabilities, losses, costs, and expenses (including reasonable legal fees and disbursements) arising out of or related to: (a) your breach of these Terms; (b) your User Content; (c) your misuse of the Platform; (d) your violation of applicable law, regulation, or third-party rights; or (e) any third-party claim arising from your participation on the Platform.

20. DISPUTE RESOLUTION

20.1 Good-faith resolution. Before initiating any formal dispute proceedings, you agree to contact Econsult Africa and attempt to resolve the matter informally and in good faith within thirty (30) days of providing written notice of the dispute.

20.2 Arbitration. Unless prohibited by applicable mandatory law, any dispute, controversy, or claim arising out of or relating to these Terms or the Platform that is not resolved informally shall be referred to and finally resolved by arbitration seated in Nairobi, Kenya, under the rules of the Nairobi Centre for International Arbitration, by a single arbitrator, conducted in the English language. The arbitrator's award shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.

20.3 Interim relief. Nothing in this Section prevents either party from seeking interim, provisional, or injunctive relief from a court of competent jurisdiction to protect its rights pending the outcome of arbitration.

20.4 Class action waiver. To the maximum extent permitted by applicable law, you agree that any dispute resolution proceedings will be conducted only on an individual basis and not in a class, consolidated, or representative action.

21. GOVERNING LAW AND JURISDICTION

These Terms are governed by and construed in accordance with the laws of the Republic of Kenya, without regard to conflict-of-laws principles. Subject to Section 20, the courts of Kenya shall have exclusive jurisdiction over any disputes arising out of or relating to these Terms.

22. AMENDMENTS

22.1 Right to amend. We may amend these Terms from time to time to reflect changes to the Platform, risk controls, compliance posture, applicable law, or operational requirements.

22.2 Notice. We will post updated Terms on the Platform and will endeavor to provide reasonable advance notice for material changes. For material amendments, we may additionally notify you by email or through an in-Platform notification. Your continued use of the Platform after the effective date of updated Terms constitutes acceptance of the amended Terms.

22.3 Objection. If you do not agree to amended Terms, you must discontinue use of the Platform before the effective date of the amendments.

23. GENERAL PROVISIONS

23.1 Severability. If any provision of these Terms is held to be invalid, illegal, or unenforceable by a court or arbitrator of competent jurisdiction, the remaining provisions shall continue in full force and effect. The invalid provision shall be modified to the minimum extent necessary to make it valid and enforceable while preserving its original intent.

23.2 No waiver. The failure of Econsult Africa to exercise or enforce any right or provision of these Terms shall not constitute a waiver of such right or provision.

23.3 Assignment. You may not assign, transfer, or delegate these Terms or any rights or obligations hereunder without Econsult Africa's prior written consent. Econsult Africa may assign these Terms to an affiliate, successor, or acquirer without your consent.

23.4 Entire agreement. These Terms, together with all policies and documents incorporated by reference, constitute the entire agreement between you and Econsult Africa with respect to the Platform and supersede all prior or contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written.

23.5 Force majeure. Econsult Africa shall not be liable for any failure or delay in performing its obligations under these Terms to the extent that such failure or delay results from circumstances beyond its reasonable control, including natural disasters, pandemics, war, terrorism, government actions, regulatory changes, power failures, internet outages, or failures of third-party service providers.

23.6 Survival. Provisions that by their nature should survive termination of these Terms shall survive, including Sections 2 (Platform Identity), 9 (Risk Acknowledgements), 13 (Data Rights), 14 (Intellectual Property), 17 (Disclaimers), 18 (Limitation of Liability), 19 (Indemnification), 20 (Dispute Resolution), and 21 (Governing Law).

23.7 Language. These Terms are drafted in English. In the event of any conflict between an English-language version and any translation, the English-language version shall prevail.

24. CLICKWRAP ACKNOWLEDGEMENT

By creating an account or submitting a Forecast Submission on Forecast Arena, you confirm that you have read and agree to these Terms of Use and the Privacy Notice, and you specifically acknowledge that:

- (a) Forecast Arena is an economic intelligence, sentiment aggregation, and research platform—not a gambling product, betting service, investment product, securities or derivatives market, deposit-taking service, or e-money facility;
- (b) any monetary engagement (where enabled) is a transaction-specific signal-enhancement mechanism designed to encourage honest, informed economic forecasting; you may lose some or all of your Participation Amount;
- (c) Econsult Africa does not set odds, does not act as a bookmaker or counterparty, and does not take the opposite side of User Forecast Submissions;
- (d) outcomes are determined using objective, externally verifiable Resolution Sources, and Econsult Africa's resolution determinations are final except in cases of manifest error;
- (e) Econsult Africa may require identity verification and may restrict, cancel, reverse, or suspend participation to protect compliance, data integrity, Platform integrity, and User safety; and
- (f) the Platform publishes Aggregated Outputs derived from User participation, which may be used in Econsult Africa's research and commercial economic intelligence products.

25. CONTACT

Should you have any questions, please reach out to info@econsult.africa

Econsult Africa Economic Consulting Services Limited

Nairobi, Kenya

Email: info@econsult.africa

Web: www.econsult.africa